Initiating Application (Family Law) Cover Sheet

In the Federal Circuit and Family Court of Australia

File number: Filed at: Filed on: Presiding Judicial Officer: Court Location: Court Date: Court Time: Type of hearing:	Court Use Only This application is incomplete unless this section contains a signature and seal of the court Signed: _____ Date: _____

The following questions have been answered online for the attached application

Filed on behalf of: The Applicant

Prepared by: **CLARITY LAWYERS** Lawyer's code: **CLA7584701**

Name of law firm: **CLARITY LAWYERS**

Address for service in Australia: **Level 2, 45 Hunter Street**

Suburb: **NEWCASTLE** State: **NSW** Postcode: **2300**

Email:

Phone: Mobile:

The orders sought

Final Order(s) sought
- [X] **Parenting**
- [X] **Financial**

Interlocutory Order(s) sought
- [X] **Interlocutory Parenting/children**
- [X] **Interlocutory Financial/property**

Relationship of the parties

Are the parties married	Yes Date: 26/09/2014 Country: Australia
Are the parties separated	Yes Date: 17/11/2023
Are the parties divorced	Not applicable

Risk of abuse, neglect, family violence/urgent

Is there risk of abuse, neglect or family violence?	Yes
Are you seeking orders for urgent consideration?	Yes

Parties

Applicant 1

Name	Stephen Christopher Cooke
Gender	Male
Date of birth	27/10/1981
Country of birth	Canada
Residential address	213 MORGAN STREET MEREWETHER 2291 NSW AUSTRALIA
ATSI origin	No

Respondent 1

Name	Heather Anne Cooke
Gender	Female
Date of birth	31/07/1978
Country of birth	Australia
Residential address	213 MORGAN STREET MEREWETHER 2291 NSW AUSTRALIA
ATSI origin	No

Children

Child 1

Name	Joshua Finn Cooke
Gender	Male
Date of birth	27/01/ 2017
With whom does the child live?	Both

Child 2

Name	Christian Finn Cooke
Gender	Male
Date of birth	20/08/ 2014
With whom does the child live?	Both

Initiating Application (Family Law)

Filed in:

☒ Federal Circuit and Family Court of Australia
☐ Family Court of Western Australia
☐ Other (specify): _____

Commonwealth Courts Portal

Note: Initiating applications should be eFiled through the Commonwealth Courts Portal - **www.comcourts.gov.au**.

COURT USE ONLY
Client ID
File Number
Filed at NEWCASTLE
Filed on
Court location
Court date
Time
Type of hearing

IMPORTANT: Information for respondents to the application is on page 10.

Stephen Christopher COOKE
Applicant

Heather Anne COOKE
Respondent

Part A: The orders sought

1a. Type of orders sought (mark all boxes that apply)

☒ Parenting ☒ Financial (property and/or maintenance)

☐ Other (specify): _____

Note: You must complete and file a *Genuine Steps Certificate* with this application.

Filed on behalf of: The Applicant
Prepared by Samantha Jane Miller Lawyer's Code CLA7584701
Name of law firm Clarity Lawyers
Address for service in Australia T & G Building, Level 4, 45 Hunter Street, Newcastle
State NSW Postcode 2300
Email samantha@claritylawyers.com.au
Tel 0240235553 Attention Samantha Miller

---

2. Final orders sought

(State precisely and briefly the final orders sought by the applicant. Please give a number to each order sought.)

1. That the Applicant further particularise his final orders sought within 14 days of the Respondent providing full financial disclosure and interim orders being made with respect to parenting.

3. Interlocutory orders sought

(These orders can only be sought in this form if you are seeking final orders as well; otherwise, leave blank. State precisely and briefly the orders sought. Please give a number to each order sought.)

If you seek interlocutory orders, you must file an affidavit which sets out the facts relied on in support of your application.

1. That this application for interim orders be heard urgently and that all times for service be abridged.

Parenting

2. That the Mother return Christian Finn Cooke, born 20 August 2014 (aged 9), and Joshua Finn Cooke, born 27th January 2017 (aged 6) ("**the children**") to the care of the Father forthwith and that the children thereafter live with the Father.

3. That this recovery order made pursuant to Section 67U of the *Family Law Act 1975* (Cth) is addressed to the Marshal of the Court, all officers of the Australian Federal Police and all officers of the State and Territory police services.

4. That the persons to whom this recovery order is addressed are authorised and directed to find, recover and deliver the children, Christian Finn Cooke, born 20 August 2014 (aged 9), and Joshua Finn Cooke, born 27th January 2017 (aged 6) ("**the children**") to the Father, namely Stephen Christopher Cooke or a person nominated by him in writing, and for that purpose to stop and search any vehicle, vessel or aircraft and to enter and search any premises or place in which there is or was reasonable cause to believe that the children may be found.

5. That the Mother, her servants or agents, be and are hereby restrained from again removing or causing the removal of the children from the care of the Father, upon any breach of which injunction the persons to whom this recovery order is addressed are authorised and directed to arrest the Mother without a warrant.

6. This recovery order will remain in force for twelve (12) months.

7. That the children spend time with the Mother thereafter on each alternate weekend from the conclusion of school on Friday (or 3.30pm on a non-school day) until 5pm on Sunday.

8. That the children have liberty to communicate with the mother via telephone or video at their request and the Father shall facilitate such communication.

9. That the parties enrol in a post separation parenting course such as Parenting After Separation Course run by Parenting After Separation.

10. That the Mother enrol in Anger Management course run by Parenting After Separation.

11. That there be a restraint upon the Mother from consuming alcohol while the children are in her care of for the 12 hours prior to them coming into her care.

12. That the Mother pay the Father's costs of and incidental to this application fixed in the sum of $5,000.

Property

13. That the Applicant have sole use and occupancy of the property 213 Morgan Street Merewether ("**the FMH**").

14. That the Respondent continue to pay when they fall due all costs and expenses associated with the FMH including but not limited to mortgage and loan repayments, strata levies, utilities, rates and insurance.

15. That the Applicant have use of the 2015 Hona CR-V VTi-L (Registration Number DAI47C) and that the Respondent continue to pay as and when they fall due all costs and expenses associated with this car including registration and insurance.

16. That the Respondent pay by way of spousal maintenance the sum of $1,457 per week into an account nominated by the Applicant.

17. That within seven (7) days of the date of these Orders the Respondent return the following sums to the following accounts and that the parties thereafter take steps to ensure that both must agree to any further withdrawals:

    (a) $29,750 from account ending *2594;

    (b) $173,000 from account ending *5063; and

    (c) $166,037 from account ending *7778.

18. That within 14 days the parties take all steps necessary to release the sum of $50,000 from account ending *5063 to the trust account of the Applicant's solicitors by way of interim litigation funding. Save that should the Respondent not return the funds as per the previous order the amount of $50,000 be paid by the Respondent to the trust account of the Applicant's solicitors.

Part B: Details of the parties

Details of Applicant/s

	Applicant 1	Applicant 2
4. Family name as used now	Cooke	
5. Given names	Stephen Christopher	
6. Gender^	☐ Choose not to answer	☐ Choose not to answer
	☒ M (male) ☐ F (female) ☐ X (indeterminate/intersex/unspecified)	☐ M (male) ☐ F (female) ☐ X (indeterminate/intersex/unspecified)
7a. Residential address (incl postcode)	213 Morgan Street, Merewether NSW 2291	
7b. Email address	stephencooke.c@gmail.com	
8. Phone number (home and mobile)	0412 846 712	
	You do not have to state your residential address, email address or telephone number if it is not safe to do so. You can repeat your contact address for service if you wish.	
9. Date of birth (day / month / year)	27/10/1981	/ /
10. Usual occupation		
11. Mark box as applicable for each applicant	☒ Present in Australia ☒ Ordinarily resident in Australia ☒ An Australian citizen ☒ Domiciled in Australia	☐ Present in Australia ☐ Ordinarily resident in Australia ☐ An Australian citizen ☐ Domiciled in Australia
12. Description	☒ Party to a marriage ☐ Party to a de facto relationship that has broken down ☒ Parent ☐ Grandparent ☐ Other (specify):	☐ Party to a marriage ☐ Party to a de facto relationship that has broken down ☐ Parent ☐ Grandparent ☐ Other (specify):
13. Is an interpreter required?	☒ No ☐ Yes. If Yes, state language & dialect:	☐ No ☐ Yes. If Yes, state language & dialect:
14. Is the applicant of Aboriginal and/or of Torres Strait Islander origin? ~	☒ No ☐ Yes Aboriginal ☐ Yes Torres Strait Islander ☐ Yes Aboriginal and Torres Strait Islander	☐ No ☐ Yes Aboriginal ☐ Yes Torres Strait Islander ☐ Yes Aboriginal and Torres Strait Islander

^ You are not required to answer this question. The information assists to understand the diversity of family relationships in Australia and contributes to gender disaggregated data. The courts' privacy policies can be found on www.fcfcoa.gov.au

~ You are not required to answer this question, but it will greatly assist the Court if you do. The information sought is being collected to assist the Court in planning and delivering client services. It is possible that you may be contacted to participate in a review of a particular aspect of the Court's services, although your right not to participate will be respected. The information you provide may be shared with researchers approved by the Court, and may be included in publications in statistical form in a way that does not identify you.

Details of Respondent/s

	Respondent 1	Respondent 2
15. Family name as used now	Cooke	
16. Given names	Heather Anne	
17. Gender^	☐ Choose not to answer	☐ Choose not to answer
	☐ M (male) ☒ F (female) ☐ X (indeterminate/intersex/unspecified)	☐ M (male) ☐ F (female) ☐ X (indeterminate/intersex/unspecified)
18a. Residential address (incl postcode)	213 Morgan Street, Merewether NSW 2291	
18b. Email address	heather111finn@gmail.com	
19. Date of birth (day / month / year)	31/07/1978	/ /
20. Usual occupation	Cardiologist	
21. Mark box as applicable for each respondent	☒ Present in Australia ☒ Ordinarily resident in Australia ☒ An Australian citizen ☒ Domiciled in Australia	☐ Present in Australia ☐ Ordinarily resident in Australia ☐ An Australian citizen ☐ Domiciled in Australia
22. Description	☒ Party to a marriage ☐ Party to a de facto relationship that has broken down ☒ Parent ☐ Grandparent ☐ Other (specify):	☐ Party to a marriage ☐ Party to a de facto relationship that has broken down ☐ Parent ☐ Grandparent ☐ Other (specify):
23. Is an interpreter required?	☒ No ☐ Yes. If Yes, state language & dialect:	☐ No ☐ Yes. If Yes, state language & dialect:
24. Is the respondent of Aboriginal and/or of Torres Strait Islander origin? ˜	☒ No ☐ Yes Aboriginal ☐ Yes Torres Strait Islander ☐ Yes Aboriginal and Torres Strait Islander	☐ No ☐ Yes Aboriginal ☐ Yes Torres Strait Islander ☐ Yes Aboriginal and Torres Strait Islander

For ^ and ˜ details, see page 3.

Part C: Relationship of parties

25. Date parties commenced living together (day / month / year)	24 September 2011	or ☐ Not applicable
26. Date of marriage (day / month / year)	26/09/2014	or ☐ Not applicable
27. Date of final separation (day / month / year)	17/11/2023	or ☐ Not applicable
28. Date of divorce (day / month / year)		or ☒ Not applicable

Part D: Children

(Complete details for each child. If more space is required for extra children, attach an extra page)

	Child 1	Child 2
29. Family name	Cooke	Cooke
30. Given names	Joshua Finn	Christian Finn
31. Date of birth (day / month / year)	27/01/2017	20/08/2014
32. Gender^	☐ Choose not to answer	☐ Choose not to answer
	☒ M (male) ☐ F (female) ☐ X (indeterminate/intersex/unspecified)	☒ M (male) ☐ F (female) ☐ X (indeterminate/intersex/unspecified)
33. Parent 1 family name	Cooke	Cooke
34. Parent 1 given names	Stephen Christopher	Stephen Christopher
35. Parent 2 family name	Cooke	Cooke
36. Parent 2 given names	Heather Anne	Heather Anne
37. With whom does the child live?	Both	Both

	~~Child 3~~	~~Child 4~~
~~**38. Family name**~~		
~~**39. Given names**~~		
~~**40. Date of birth**~~ ~~(day / month / year)~~		
~~**41. Gender^**~~	~~☐ Choose not to answer~~	~~☐ Choose not to answer~~
	~~☐ M (male) ☐ F (female) ☐ X (indeterminate/intersex/unspecified)~~	~~☐ M (male) ☐ F (female) ☐ X (indeterminate/intersex/unspecified)~~
~~**42. Parent 1 family name**~~	~~_____~~	~~_____~~
~~**43. Parent 1 given names**~~	~~_____~~	~~_____~~
~~**44. Parent 2 family name**~~	~~_____~~	~~_____~~
~~**45. Parent 2 given names**~~	~~_____~~	~~_____~~
~~**46. With whom does the child live?**~~		

~~For ^ details, see page 3.~~

Part E: For applications for parenting orders

47. Has the applicant obtained a certificate from a registered family dispute resolution practitioner? (Refer to section 60I of the *Family Law Act 1975*).

☒ No ☐ Yes

If yes, attach a copy of the certificate to this application and go to Part F of this form.

If no, to obtain an exemption from filing a certificate you must either complete and file the form *Affidavit – Non-Filing of Family Dispute Resolution Certificate* or include the factual basis for the exemption in the affidavit you file in support of any order you are seeking.

48. Has the applicant received advice from a family counsellor or a family dispute resolution practitioner about the services and options (including alternatives to court action) available in circumstances of abuse or violence? (Refer to section 60J of the *Family Law Act 1975*).

☒ No ☐ Yes

Part F: Other court cases and orders

Ongoing cases

49a. Are there any ongoing cases in this or any other court about family law, child support, family violence or abuse in relation to a child, or child welfare issues that involve any of the parties or children listed in this application?

☒ No ☐ Yes

If yes, provide the following details for each ongoing case. (Attach extra pages as required.)

49b. Court name and place

49c. Next Court date / /

49d. Names of parties

49e. State the nature of the orders sought (eg property settlement, parenting orders, child support)

Existing orders, agreements or undertakings

50a. Are there any existing orders, agreements, parenting plans or undertakings to a court about family law, child support, family violence or abuse in relation to a child (including family violence orders which have applied to a child or a member of the child's family), or child welfare issues concerning any of the parties or children listed in this application?

☒ No ☐ Yes

If yes, either **attach copies** of any orders, agreements, parenting plans or undertakings or provide details below.

(If there is more than one order etc, attach extra pages as required.)

50b. Court name and place

50c. Date / /

50d. Names of parties to the order, agreement, parenting plan or undertaking

Part G: For property and/or spouse/de facto partner maintenance applications

If the parties were in a de facto relationship that has broken down, complete Part H

51. Have the parties entered into a financial agreement or a part VIIIAB Financial Agreement under the *Family Law Act 1975* or under any relevant state or territory legislation?

☒ No ☐ Yes

52. If either party has a superannuation interest, have the parties entered into a binding superannuation agreement in relation to that superannuation interest?

☒ No ☐ Yes

53. Is any party currently bankrupt or currently a debtor in bankruptcy proceedings started by either a creditor's petition or a debtor's petition or currently a debtor subject to a personal insolvency agreement?

☒ No ☐ Yes

54. Is there a proceeds of crime order or current forfeiture application in relation to any of the property of any of the parties?

☒ No ☐ Yes

If yes, attach a sealed copy of the order or application.

~~Part H: De facto relationship jurisdiction – financial causes~~

~~(subsection 4(1) of the *Family Law Act 1975* defines de facto financial cause)~~

~~Complete **all** the boxes below if relying on the Court's jurisdiction to make orders for the benefit of a party to de facto relationship that has broken down.~~

~~Entitlement to apply and geographic requirements~~

~~**55a. Did your de facto relationship break down on or after 1 March 2009 or if resident in South Australia on or after 1 July 2010?** (See important notes for completing Part H)~~

☐ ~~No~~ ☐ ~~Yes~~

~~**55b. Is the period or the total of the periods of the de facto relationship at least two years**?~~

☐ ~~No~~ ☐ ~~Yes~~

~~**55c. Is there is a child of the de facto relationship?**~~

☐ ~~No~~ ☐ ~~Yes~~

~~**55d. Has the applicant made substantial contributions and a failure to make an order or declaration would result in serious injustice to the applicant?**~~

☐ ~~No~~ ☐ ~~Yes~~

55e Is, or was, the relationship registered under a prescribed law of a state or territory of Australia? ☐ No ☐ Yes

55f. Were both parties to the relationship ordinarily resident in one or more of the Australian territories or New South Wales, Queensland, Victoria, Tasmania or South Australia for at least one third of the domestic relationship, or at the date the relationship broke down? ☐ No ☐ Yes

55g. Did the applicant make substantial contributions in one or more of the Australian territories or New South Wales, Queensland, Victoria, Tasmania or South Australia? ☐ No ☐ Yes

Part I: Cross-vested jurisdiction

(Complete only if relying on cross-vested jurisdiction. Note: An affidavit **must** be filed – see rule 9.10 of the Rules)

56. If relying on a cross-vesting law, specify the Territory law relied on

Part J: Lawyer's declaration

57. If the applicant is filing this application without a lawyer, this part need not be completed. However the applicant should obtain a copy of the information brochure *Marriage, Families and Separation* from the Court when filing the application. If a lawyer is filing the application, then the lawyer must give the applicant a copy of the brochure and sign the following declaration.

I gave the applicant(s) a copy of the Court's brochure *Marriage, Families and Separation*.

Signature of lawyer

Full name of lawyer: Samantha Miller

Date: 5 / 12 / 2023

Part K: Statement of Truth of the contents of this document

58. Applicant 1	Applicant 2
1. The facts of which I have personal knowledge are true. 2. All other facts are true to the best of my knowledge, information and belief and the orders sought in this application are supported by evidence. 3. I am aware that I have a duty to the Court and to each other party to give full and frank disclosure – in a timely manner – of all information relevant to the issues in the case. 4. I have read and complied with the pre-action procedures required of me as outlined in Schedule 1 of the Rules, and completed a *Genuine Steps Certificate*.	1. The facts of which I have personal knowledge are true. 2. All other facts are true to the best of my knowledge, information and belief and the orders sought in this application are supported by evidence. 3. I am aware that I have a duty to the Court and to each other party to give full and frank disclosure – in a timely manner – of all information relevant to the issues in the case. 4. I have read and complied with the pre-action procedures required of me as outlined in Schedule 1 of the Rules, and completed a *Genuine Steps Certificate*.

I have read and understood this Statement of Truth (please tick)

DocuSigned by:
Stephen Christopher Cooke
F0762E05F9A94BE...

☒ **Signature of Applicant 1**

Date: 5 /12 /2023

I have read and understood this Statement of Truth (please tick)

☐ **Signature of Applicant 2**

Date: / /

This document was signed and witnessed over audio visual link in accordance with section 14G of the Electronic Transactions Act 2000.

IMPORTANT NOTICE TO RESPONDENT(S)

You should seek legal advice about this application.

If you do not want the Court to make the orders sought in this application or if you want the Court to make other orders, **YOU MUST:**

File with the Court:

- **If seeking parenting orders**:
  - a *Response to Initiating Application*;
  - a *Notice of child abuse, family violence or risk*;
  - a *Genuine Steps Certificate*;
  - a *Questionnaire – Parenting*; and
  - other documents as required, depending on the orders you seek (see the relevant Practice Direction for each type of proceedings commenced by the applicant).
- **If seeking financial orders*:***
  - a *Response to Initiating Application;*
  - a *Financial Statement;*
  - a *Genuine Steps Certificate;*
  - a *Questionnaire – Financial;* and
  - other documents as required, depending on the orders you seek (see the relevant Practice Direction for each type of proceedings commenced by the applicant).

These forms are available on the Court's website www.fcfcoa.gov.au

- You must also file an affidavit if:
  - interlocutory orders are sought by either party, or
  - an allegation is made in the *Notice of child abuse, family violence or risk*, or
  - if required by the Rules or relevant Practice Direction.

An affidavit form is available on the Court's website www.fcfcoa.gov.au**.**

You must also serve copies of the documents filed on all other parties.

Attending the hearing

Your hearing may be **in person**, by **telephone** or **electronic web conference** eg. *Microsoft Teams*.

Please file a *Notice of Address for Service* **as soon as possible** so the Court can provide instructions on how to attend your hearing. Please refer to the Court website for further information on attending hearings.

Please note: if you do not attend the hearing, orders may be made in your absence.